

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00065-CR

TASHA NICOLE ROY, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 359th District Court
Montgomery County, Texas
Trial Court No. 24-06-09436

Before Stevens, C.J., van Cleef and Rambin, JJ.

O R D E R

Tasha Nicole Roy appeals from a final judgment of conviction entered by the 359th Judicial District Court of Montgomery County, Texas.[1] Roy's notice of appeal was filed on February 23, 2026. The clerk's record was filed on April 28, 2026, and the reporter's record was filed on June 22, 2026, making the appellant's brief originally due July 22, 2026. Appellate counsel has now filed four motions to extend the briefing deadline in this case. We granted appellate counsel's first two motions, extending the deadline to September 11, 2026. By letter dated September 15, 2026, we denied appellate counsel's third motion, provided her the notice required by Rule 38.8(b)(2) of the Texas Rules of Appellate Procedure that her brief was late, and gave her ten days to resolve the matter. *See* TEX. R. APP. P. 38.8(b)(2). Since our September 15 correspondence, appellate counsel has filed an additional motion seeking an extension of the filing deadline.

Because appellant's brief has not been filed, we abate this matter to the trial court for a hearing pursuant to Rule 38.8(b)(2). *See* TEX. R. APP. P. 38.8(b)(2). Specifically, the trial court is directed to determine whether Roy still desires to pursue this appeal. Assuming Roy still desires to pursue the appeal, the trial court is directed to determine (1) why Roy's appellate brief has not been filed and (2) whether her appellate counsel has abandoned the appeal. The trial court is directed to make appropriate findings and recommendations and have a record of the proceedings prepared. The record must include any findings made by the trial court. Based on that record, this Court will take appropriate action to ensure that Roy's rights are protected. The

[1]Originally appealed to the Ninth Court of Appeals, this case was transferred to this Court by the Texas Supreme Court pursuant to its docket equalization efforts. *See* TEX. GOV'T CODE ANN. § 73.001 (Supp.).

trial court may also address any other matters it deems appropriate. The hearing is to be conducted within fifteen days of the date of this order.

The trial court's findings and recommendations on the issues set forth above shall be entered into the record of the case and presented to this Court in the form of a supplemental clerk's record within fifteen days of the date of the hearing. *See* TEX. R. APP. P. 38.8(b)(3). The reporter's record of the hearing shall also be filed with this Court in the form of a supplemental reporter's record within fifteen days of the date of the hearing. *See id.*

All appellate timetables are stayed and will resume on our receipt of (1) the appellant's brief or (2) the supplemental appellate record.

IT IS SO ORDERED.

BY THE COURT

Date: October 5, 2026